

Amendment No. 1 to SB0324

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 324*

House Bill No. 1200

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as "Savanna's Law."

SECTION 2. Tennessee Code Annotated, Title 40, Chapter 39, is amended by adding the following as a new part:

40-39-401.

As used in this part:

- (1) "Convicted" and "conviction" mean a verdict of guilty by a judge or jury or a plea of guilty and include a plea of nolo contendere and a best interest plea accepted by the court;
 - (2) "Domestic abuse victim" has the same meaning as defined in § 36-3-601;
 - (3) "Persistent domestic violence offender" means a person who:
 - (A) Has been convicted in this state of an offense committed against a domestic abuse victim; and
 - (B) Has at least one (1) prior conviction for an offense committed against a domestic abuse victim;
 - (4) "Prior conviction" has the same meaning as defined in § 40-35-106;
- and
- (5) "TBI" means the Tennessee bureau of investigation.

40-39-402.

(a) There is created within the TBI a registry of persistent domestic violence offenders.

(b) The TBI shall maintain this registry based upon information supplied to the TBI by the court clerks pursuant to subsections (c) and (d) and information available to the TBI from the department of correction and local law enforcement agencies. The TBI shall make the registry available for public inquiry on the internet.

(c) The registry must consist of the persistent domestic violence offender's name, date of birth, conviction date, county or counties of convictions, and a current photograph of the persistent domestic violence offender. If available after reasonable inquiry, the court clerk shall provide the TBI with a copy of the persistent domestic violence offender's driver license, or other state or federal identification, and such other identifying data as the TBI determines is necessary to properly identify the persistent domestic violence offender and exclude innocent persons. However, the registry available for public inquiry must not include the persistent domestic violence offender's address, social security number, driver license number, or any other state or federal identification number.

(d)

(1) If a person is convicted of an offense committed against a domestic abuse victim and the person convicted has at least one (1) prior conviction for an offense committed against a domestic abuse victim, then the court shall, upon proof of any prior convictions committed against a domestic abuse victim, order the defendant to register as a persistent domestic violence offender under this part.

(2) If a court orders a defendant to register under this part, then the court clerk shall forward to the TBI a certified copy of the qualifying conviction and the date of birth of the defendant. The court clerk shall forward the information to the TBI within seven (7) days of the date of the conviction.

(e) Notwithstanding § 40-35-111 and in addition to any other punishment that may be imposed for a conviction of the offense, a defendant required to register under this part must be assessed a registration fee in the amount of one hundred fifty dollars (\$150), which must be paid to the clerk of the court imposing the sentence, who shall:

(1) Retain fifty dollars (\$50.00) of the fee for the administration of this part, which must be reserved for the purposes authorized by this part at the end of each fiscal year; and

(2) Remit one hundred dollars (\$100) of the fee to the department of finance and administration's office of criminal justice programs for the purpose of administering grants to fund family violence prevention and intervention services. The funding shall not revert to the general fund at the end of the fiscal year and must be carried forward for the purposes authorized by this subdivision (e)(2).

(f) The TBI shall remove from the registry the name and other identifying information of a persistent domestic violence offender required to register under this part:

(1) Five (5) years after the date of the most recent conviction for an offense committed against a domestic abuse victim if the defendant has one (1) prior conviction for an offense committed against a domestic abuse victim;

(2) Seven (7) years after the date of the most recent conviction for an offense committed against a domestic abuse victim if the defendant has two (2) prior convictions for an offense committed against a domestic abuse victim;

(3) Ten (10) years after the date of the most recent conviction for an offense committed against a domestic abuse victim if the defendant has three (3) prior convictions for an offense committed against a domestic abuse victim; and

(4) Twenty (20) years after the date of the most recent conviction for an offense committed against a domestic abuse victim if the defendant has four (4)

or more prior convictions for an offense committed against a domestic abuse victim.

(g) This section applies only to persons convicted of an offense committed against a domestic abuse victim that occurred on or after January 1, 2026; provided, however, that a prior conviction is not required to occur on or after January 1, 2026.

SECTION 3. This act takes effect January 1, 2026, the public welfare requiring it, and applies to offenses committed on or after that date.